

these fees and costs to Plaintiff as prevailing party against GM.

Ruling

1. Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is granted.
2. GM shall pay to Plaintiff the amount of \$41,862.03 no later than ten (10) days from the date it is served with a copy of the Court's order.
3. The Court shall execute the Proposed Order lodged with the Court on November 5, 2026.

14. 9:00 AM CASE NUMBER: C24-02919

CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH

HEARING ON SUMMARY MOTION

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The hearing is **continued** to April 22, 2026, at 9:00 a.m. in this Department to allow for supplemental briefing, as outlined below.

John Muir Health has moved for summary judgment on the grounds that plaintiff's claims are barred by the workers' compensation exclusivity rule (Labor Code §§3600-3602) because John Muir was plaintiff's "special employer." (Labor Code, § 3602 (d)(1)-(2).) John Muir argues plaintiff's "general employer," Cross Country, provided her with workers' compensation benefits pursuant to the contract with John Muir and, therefore, John Muir, as the "special employer" is not "subject to [...] tort liability in the event of employee injury [...]."

Plaintiff opposes the motion, arguing she was not John Muir's employee.

Though neither side here explicitly invokes Labor Code, section 2775, subdivision (b)(1), it appears that section supplies the test for whether plaintiff qualifies as an employee of John Muir. That section states:

For purposes of this code [...] a person providing labor or services for remuneration shall be considered an employee rather than an independent contractor unless the hiring entity demonstrates that all of the following conditions are satisfied:

(A) The person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact.

(B) The person performs work that is outside the usual course of the hiring entity's business.

(C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.

(Lab. Code, § 2775 (b)(1).)

This test, also known as the "ABC test" set forth in *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 916-917, was codified in 2019 by the California Legislature. (*Castellanos v.*

State of California (2024) 16 Cal.5th 588, 597.) The test does not rely on intentions or contractual labels but instead focuses on specific criteria to classify a worker as an independent contractor. Section 2775 does not exempt workers' compensation cases. Any judicially created standard does not override the statutory framework in Section 2775 to determine employment status under the Labor Code. This encompasses all relevant sections of the Labor Code, including those related to the workers' compensation exclusivity rule and dual employment situations.

Parties shall provide supplemental briefing to address this statutory presumption, which, in the Court's view, may negate the importance of the following factual questions: (1) whether parties contemplated the length of the assignment (see Additional Material Fact No. 15), (2) plaintiff's "consent" to designation as "employee" of John Muir (see Additional Material Fact Nos. 17-18), and (3) any labels in John Muir's contract with Cross Country designating providers supplied by the agency as either employees or independent contractors (see Additional Material Fact No. 19, 22).

The hearing is continued to April 22, 2026. John Muir's supplemental brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than March 25, 2026. Plaintiff's responsive brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than April 8, 2026. Any reply (not to exceed five double-spaced pages) shall be due and e-filed on April 15, 2026. No additional evidence shall be submitted.

15. 9:00 AM CASE NUMBER: C25-00687
CASE NAME: MIHAELA CROSSMAN VS. GREG WALLACE
***HEARING ON MOTION IN RE: SET ASIDE VOID DEFAULT AND QUASHING SUMMONS FOR LACK OF PERSONAL JURISDICTION**
FILED BY: WALLACE, GREG
TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This Motion to set aside Default and Quashing Summons is vacated. The CMC, Line 2, is also vacated. No appearance is required at the hearing on March 11, 2026.

16. 9:00 AM CASE NUMBER: C25-00711
CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SOFIA MINASSIAN, ESQ.**
FILED BY: MURLEY, ROBERT JACK
TENTATIVE RULING:

This Motion is moot. Plaintiff's counsel, Sofia Minassian, Esq. of the Sedaghat Law Group filed a motion to be relieved as Counsel on November 14, 2025. However, on February 24, 2026, the same law firm served notice of change of handling attorney representing Plaintiff Robert Murley. The hearing on this motion is vacated. No appearance is required at the March 11, 2026 hearing.